The FATA is governed by an administrative system and a judicial system different from the rest of Pakistan—the Frontier Crimes Regulations (FCR) of 1901, codified under British rule.[6] Because Pakistan retained the colonial administrative and legal structures of the British, as codified in the FCR, the FATA populations are legally separate from and unequal to other Pakistani citizens. Examples of these differences under the FCR follow:

FATA residents do not have access to national political parties, and political parties are forbidden from extending their activities into the agencies of FATA.
The FATA is under the direct executive authority of the President of Pakistan. Laws framed by the National Assembly of Pakistan do not apply in the FATA unless so ordered by the President, who is empowered to issue regulations for the tribal areas.
FATA residents do not have the right to legal representation, to present material evidence, or to cross-examine witnesses in Pakistan's judicial system. Those convicted are denied the right of appeal in Pakistan's courts.
The President's representatives to the FATA, who are called political agents, can punish an entire tribe for crimes committed on the tribe's territory by issuing fines, making arrests, implementing property seizures, and establishing blockades.



Sources: GAO; USAID and Map Resources (maps).

Figure 1. Map of the Federally Administered Tribal Areas, Pakistan

In response to the draft, Defense noted that the FCR is a culturally acceptable recognition of the tribal structure of the FATA, where the population is ethnically different from the majority of Pakistan's citizens, and precludes forced assimilation. Further, Defense noted that removing the FCR without a replacement mechanism that is accepted by the indigenous population has the potential to create a vacuum that could result in negative consequences. A

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